

TAB 9



Board of Education Report

File #: Rep-196-22/23, **Version:** 1

Authorization to Negotiate and Execute an Agreement with Palisades Charter High School for the Common Area Modernization Project

March 27, 2023

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive, and/or his designee(s), to negotiate and execute an agreement with Palisades Charter High School (Palisades) for the modernization of existing common areas consisting of improvements to the main quad, outdoor stage, student covered eating area, front flagpole area, Gilbert quad, student and staff cafeterias, front of the gym area, mini-quads, music building front patios, and planting drought-tolerant plants at the Palisades campus (Project), and execute all reasonable instruments, as legally permissible, to implement the Project.

Background:

Palisades is an independent conversion charter school as of 1995 and occupies the former Palisades Senior High School via a Sole Occupant Agreement (SOA) with Los Angeles Unified School District (Los Angeles Unified or District). Palisades' renewal charter petition expires on June 30, 2027 and allows for a maximum enrollment of 3,000 students in 9th through 12th grades.

Per the terms of the SOA, Palisades submitted to the District for its review and approval a facilities alteration request for the Project. Palisades will construct the Project in accordance with all applicable laws and District standards and requirements.

Palisades estimates the total Project budget to be \$420,000 and anticipates the Project to be constructed in multiple phases. Construction of the initial phase will begin in the third quarter of 2023 and be completed in the first quarter of 2024.

Palisades shall solely finance, construct and maintain the Project. Palisades will pay all costs related to, or as a result of, the Project, including but not limited to District costs for review and Division of the State Architect (DSA) inspector costs.

Palisades is located within the boundaries of West L.A. Community of School, Region West, and Board District 4 (Nick Melvoin). As of the 2022-2023 school year, Palisades served approximately 2,940 students in 9th through 12th grade

Expected Outcomes:

Authorize staff to negotiate and execute an agreement, and/or any other reasonable instruments to allow Palisades to proceed with the Project. All improvements made as a result of the proposed Project, including the maintenance of the improvements, will be the responsibility of Palisades. Ownership of the improvements will be transferred to Los Angeles Unified upon completion of construction.

Board Options and Consequences:

If the proposed action is not approved, staff will be unable to execute the agreements necessary to enable Palisades to proceed with its Project. Furthermore, students, staff and the community will not benefit from the improvements proposed to be undertaken.

Policy Implications:

This Board action will not change current Los Angeles Unified policy and complies with the terms of the SOA.

Budget Impact:

The activities associated with negotiating and executing an agreement with Palisades require staff time from Facilities and the Office of the General Counsel. Additional funding is not needed to implement the proposed action. Palisades will fully fund the design and construction of the proposed Project, which includes, but is not limited to, costs associated with Los Angeles Unified's design review, oversight, and inspection.

Under the terms of the development agreement, Palisades will be responsible for maintaining the areas upgraded by the Project. The Project does not have a budget impact on Los Angeles Unified's General Fund or Bond Program. Charter Schools Division has confirmed that Palisades has sufficient funding to cover the costs for the Project. Any potential cost increases associated with the proposed Project are the sole responsibility of Palisades.

Student Impact:

The improvements associated with the Project will enhance the educational quality of the learning environment to benefit approximately 2,940 students.

Equity Impact:

Systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

Issues and Analysis:

The template development agreement with Palisades contains the following tentative material terms and conditions for the financing, design, construction, and operation of the proposed Project:

- Palisades is responsible for submitting its Project plans to Los Angeles Unified and, subsequently, to DSA for review and approval.
- The proposed Project must comply with all applicable laws, regulations, Los Angeles Unified facilities design, technical specifications for construction, and design review and approval process, including but not limited to the Field Act, Department of Toxic Substances Control, California Environmental Quality Act, and the Americans with Disabilities Act.
- The architect, construction manager, general contractor, or multiple prime contractors, engineers, consultants, and professionals retained for the proposed Project shall be licensed, as applicable, in good standing and authorized to do business in the State of California.
- The proposed Project shall satisfy Los Angeles Unified requirements with regard to construction on a school site, including, but not limited to, the payment of prevailing wages (unless the partner organization can provide an exemption from the Department of Industrial Relations with regard to the

payment of prevailing wages) and a performance bond in an amount no less than one hundred percent (100%) of the construction cost of the proposed Project, and the use of Los Angeles Unified Inspectors certified by DSA.

- Palisades will provide Los Angeles Unified with evidence that it has adequate funding to complete construction of the improvements and alterations, both at the commencement and throughout the construction process.
- Ownership of the improvements will be transferred to Los Angeles Unified upon completion of construction.
- Palisades will fund, at its sole cost and expense, maintenance for the Project.

Attachments:

None

Informatives:

None

Submitted:

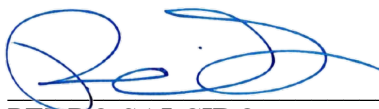
02/17/2023

RESPECTFULLY SUBMITTED,



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APPROVED BY:



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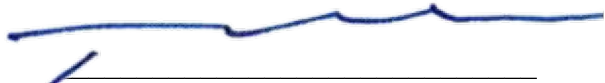
☒ Approved as to form.

APPROVED BY:



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TONY ATIENZA
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☒ Approved as to budget impact statement.

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